

EXPERT REPORTS · 4 FEB 1998

Gandur report

TYPE	DATE	PARTIES
Private expert report	4 Feb 1998	McDonald's France v. Bernard Collorafi

SUMMARY SHEET

Gandur report — expert approved by the Court of Cassation · 4 February 1998

Overview: opinion drawn up by Robert Gandur, expert approved by the Court of Cassation, at the request of Maître Jean-Paul Clément, counsel for Bernard Collorafi and the companies SEBOL, B et O and Les Pins. Remit given by letter of 8 January 1998.

Key points

The remit concerns the impact of the opening of the McDonald's restaurants in Antibes Nord, Antibes Ouest and Vallauris on the turnover and results of SEBOL and B et O, the determination of sustainable rents and fees, and the quantification of the damage linked to the termination of the agreements notified by McDonald's on 2 January 1998. The summary of the facts mentions:

- the agreement of 5 August 1987 (Carrefour business, chemin Saint-Claude in Antibes, term of twenty years, base fee of 12% of turnover excl. VAT plus 5% service), transferred to SEBOL by amendment of 31 August 1987;
- the Antibes Nord agreement of 9 October 1996 (fee of 20%, reduced to 17% for 1997), assigned to EURL B et O;
- the Antibes Ouest agreement of 18 June 1997 (fee of 15%).

The report notes a SEBOL turnover of 27.1 million francs in 1994, the arrival of a Quick competitor in 1995, and for B et O a turnover of 13.5 million in 1997, a third below forecasts. The losses are capitalised at a discount rate of 8%.

Significance

This expert report quantifies the economic damage claimed by the franchisee and supports his compensation claims against McDonald's.

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Source: bernardcollorafi.org/en/documents/gandur-report-collorafi-mcdonalds-franchise-damages-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.